

SECTION 01 33 23**SHOP DRAWINGS, PRODUCT DATA, AND SAMPLES****PART 1 - GENERAL****1.1 DESCRIPTION**

- A. This specification defines the general requirements and procedures for submittals. A submittal is information submitted for VA review to establish compliance with the contract documents.
- B. Detailed submittal requirements are found in the technical sections of the contract specifications. The Contracting Officer may request submittals in addition to those specified when deemed necessary to adequately describe the work covered in the respective technical specifications at no additional cost to the government.
- C. VA approval of a submittal does not relieve the Contractor of the responsibility for any error which may exist. The Contractor is responsible for fully complying with all contract requirements and the satisfactory construction of all work, including the need to check, confirm, and coordinate the work of all subcontractors for the project. Non-compliant material incorporated in the work will be removed and replaced at the Contractor's expense.

1.2 DEFINITIONS

- A. Preconstruction Submittals: Submittals which are required prior to issuing contract notice to proceed or starting construction. For example, Certificates of insurance; Surety bonds; Site-specific safety plan; Construction progress schedule; Schedule of values; Submittal register; List of proposed subcontractors.
- B. Shop Drawings: Drawings, diagrams, and schedules specifically prepared to illustrate some portion of the work. Drawings prepared by or for the Contractor to show how multiple systems and interdisciplinary work will be integrated and coordinated.
- C. Product Data: Catalog cuts, illustrations, schedules, diagrams, performance charts, instructions, and brochures, which describe and illustrate size, physical appearance, and other characteristics of materials, systems, or equipment for some portion of the work. Samples of warranty language when the contract requires extended product warranties.
- D. Samples: Physical examples of materials, equipment, or workmanship that illustrate functional and aesthetic characteristics of a material or

product and establish standards by which the work can be judged. Color samples from the manufacturer's standard line (or custom color samples if specified) to be used in selecting or approving colors for the project. Field samples and mock-ups constructed to establish standards by which the ensuing work can be judged.

- E. Design Data: Calculations, mix designs, analyses, or other data pertaining to a part of work.
- F. Test Reports: Report which includes findings of a test required to be performed by the Contractor on an actual portion of the work. Report which includes finding of a test made at the job site or on sample taken from the job site, on portion of work during or after installation.
- G. Certificates: Document required of Contractor, or of a manufacturer, supplier, installer, or subcontractor through Contractor. The purpose is to document procedures, acceptability of methods, or personnel qualifications for a portion of the work.
- H. Manufacturer's Instructions: Pre-printed material describing installation of a product, system, or material, including special notices and MSDS concerning impedances, hazards, and safety precautions.
- I. Manufacturer's Field Reports: Documentation of the testing and verification actions taken by manufacturer's representative at the job site on a portion of the work, during or after installation, to confirm compliance with manufacturer's standards or instructions. The documentation must indicate whether the material, product, or system has passed or failed the test.
- J. Operation and Maintenance Data: Manufacturer data that is required to operate, maintain, troubleshoot, and repair equipment, including manufacturer's help, parts list, and product line documentation. This data shall be incorporated in an operations and maintenance manual.
- K. Closeout Submittals: Documentation necessary to properly close out a construction contract. For example, Record Drawings and as-built drawings. Also, submittal requirements necessary to properly close out a phase of construction on a multi-phase contract.

1.3 SUBMITTAL REGISTER

- A. The submittal register will list items of equipment and materials for which submittals are required by the specifications. This list may not be all inclusive and additional submittals may be required by the specifications. The Contractor is not relieved from supplying

submittals required by the contract documents but which have been omitted from the submittal register.

- B. The submittal register will serve as a scheduling document for submittals and will be used to control submittal actions throughout the contract period.
- C. The Contractor will provide the submittal register in electronic format. Thereafter, the Contractor shall track all submittals by maintaining a complete list, including completion of all data columns, including dates on which submittals are received and returned by the VA.



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- D. The Contractor shall update the submittal register as submittal actions occur and maintain the submittal register at the project site until final acceptance of all work by Contracting Officer.
- E. The Contractor shall submit formal monthly updates to the submittal register in electronic format. Each monthly update shall document actual submission and approval dates for each submittal.

1.4 SUBMITTAL SCHEDULING

- A. Submittals are to be scheduled, submitted, reviewed, and approved prior to the acquisition of the material or equipment.
- B. Coordinate scheduling, sequencing, preparing, and processing of submittals with performance of work so that work will not be delayed by submittal processing. Allow time for potential resubmittal.
- C. No delay costs or time extensions will be allowed for time lost in late submittals or resubmittals.
- D. All submittals are required to be approved prior to the start of the specified work activity.

1.5 SUBMITTAL PREPARATION

- A. Each submittal is to be complete and in sufficient detail to allow ready determination of compliance with contract requirements.
- B. Collect required data for each specific material, product, unit of work, or system into a single submittal. Prominently mark choices, options, and portions applicable to the submittal. Partial submittals will not be accepted for expedition of construction effort. Submittal will be returned without review if incomplete.

- C. If available product data is incomplete, provide Contractor-prepared documentation to supplement product data and satisfy submittal requirements.
- D. All irrelevant or unnecessary data shall be removed from the submittal to facilitate accuracy and timely processing. Submittals that contain the excessive amount of irrelevant or unnecessary data will be returned with review.
- E. Provide a transmittal form for each submittal with the following information:
 - 1. Project title, location and number.
 - 2. Construction contract number.
 - 3. Date of the drawings and revisions.
 - 4. Name, address, and telephone number of subcontractor, supplier, manufacturer, and any other subcontractor associated with the submittal.
 - 5. List paragraph number of the specification section and sheet number of the contract drawings by which the submittal is required.
 - 6. When a resubmission, add alphabetic suffix on submittal description. For example, submittal 18 would become 18A, to indicate resubmission.
 - 7. Product identification and location in project.
- F. The Contractor is responsible for reviewing and certifying that all submittals are in compliance with contract requirements before submitting for VA review. Proposed deviations from the contract requirements are to be clearly identified. All deviations submitted must include a side by side comparison of item being proposed against item specified. Failure to point out deviations will result in the VA requiring removal and replacement of such work at the Contractor's expense.
- G. Stamp, sign, and date each submittal transmittal form indicating action taken.
- H. Stamp used by the Contractor on the submittal transmittal form to certify that the submittal meets contract requirements is to be similar to the following:

CONTRACTOR
(Firm Name)
_____ Approved
_____ Approved with corrections as noted on submittal data and/or attached sheets(s)
SIGNATURE: _____
TITLE: _____
DATE: _____

1.6 SUBMITTAL FORMAT AND TRANSMISSION

- A. Provide submittals in electronic format, with the exception of material samples. Use PDF as the electronic format, unless otherwise specified or directed by the Contracting Officer.
- B. Compile the electronic submittal file as a single, complete document. Name the electronic submittal file specifically according to its contents.
- C. Electronic files must be of sufficient quality that all information is legible. Generate PDF files from original documents so that the text included in the PDF file is both searchable and can be copied. If documents are scanned, Optical Character Resolution (OCR) routines are required.
- D. E-mail electronic submittal documents smaller than 5MB in size to e-mail addresses as directed by the Contracting Officer.

- E. Provide electronic documents over 5MB through an electronic FTP file sharing system. Confirm that the electronic FTP file sharing system can be accessed from the VA computer network. The Contractor is responsible for setting up, providing, and maintaining the electronic FTP file sharing system for the construction contract period of performance.
- F. Provide hard copies of submittals when requested by the Contracting Officer. Up to 3 additional hard copies of any submittal may be requested at the discretion of the Contracting Officer, at no additional cost to the VA.

1.7 SAMPLES

- A. Submit two sets of physical samples showing range of variation, for each required item.
- B. Where samples are specified for selection of color, finish, pattern, or texture, submit the full set of available choices for the material or product specified.
- C. When color, texture, or pattern is specified by naming a particular manufacturer and style, include one sample of that manufacturer and style, for comparison.
- D. Before submitting samples, the Contractor is to ensure that the materials or equipment will be available in quantities required in the project. No change or substitution will be permitted after a sample has been approved.
- E. The VA reserves the right to disapprove any material or equipment which previously has proven unsatisfactory in service.
- F. Physical samples supplied maybe requested back for use in the project after reviewed and approved.

1.8 OPERATION AND MAINTENANCE DATA

- A. Submit data specified for a given item within 30 calendar days after the item is delivered to the contract site.
- B. In the event the Contractor fails to deliver O&M Data within the time limits specified, the Contracting Officer may withhold from progress payments 50 percent of the price of the item with which such O&M Data are applicable.

1.9 TEST REPORTS

SRE may require specific test after work has been installed or completed which could require contractor to repair test area at no additional cost to contract.

1.10 VA REVIEW OF SUBMITTALS AND RFIS

- A. The VA will review all submittals for compliance with the technical requirements of the contract documents. The Architect-Engineer for this project will assist the VA in reviewing all submittals and determining contractual compliance. Review will be only for conformance with the applicable codes, standards and contract requirements.
- B. Period of review for submittals begins when the VA COR receives submittal from the Contractor.
- C. Period of review for each resubmittal is the same as for initial submittal.
- D. VA review period is 15 working days for submittals.
- E. VA review period is 10 working days for RFIs.
- F. The VA will return submittals to the Contractor with the following notations:
 - 1. "Approved": authorizes the Contractor to proceed with the work covered.
 - 2. "Approved as noted": authorizes the Contractor to proceed with the work covered provided the Contractor incorporates the noted comments and makes the noted corrections.
 - 3. "Disapproved, revise and resubmit": indicates noncompliance with the contract requirements or that submittal is incomplete. Resubmit with appropriate changes and corrections. No work shall proceed for this item until resubmittal is approved.
 - 4. "Not reviewed": indicates submittal does not have evidence of being reviewed and approved by Contractor or is not complete. A submittal marked "not reviewed" will be returned with an explanation of the reason it is not reviewed. Resubmit submittals after taking appropriate action.

1.11 APPROVED SUBMITTALS

- A. The VA approval of submittals is not to be construed as a complete check, and indicates only that the general method of construction, materials, detailing, and other information are satisfactory.

- B. VA approval of a submittal does not relieve the Contractor of the responsibility for any error which may exist. The Contractor is responsible for fully complying with all contract requirements and the satisfactory construction of all work, including the need to check, confirm, and coordinate the work of all subcontractors for the project. Non-compliant material incorporated in the work will be removed and replaced at the Contractor's expense.
- C. After submittals have been approved, no resubmittal for the purpose of substituting materials or equipment will be considered unless accompanied by an explanation of why a substitution is necessary.
- D. Retain a copy of all approved submittals at project site, including approved samples.

1.12 WITHHOLDING OF PAYMENT

Payment for materials incorporated in the work will not be made if required approvals have not been obtained.

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